STANDARD LETTER FOR TENANTS

EFFECT OF CHAPTER 4 OF PART 1 OF THE HOUSING (SCOTLAND) ACT 2006 ON YOUR TENANCY: INFORMATION PROVIDED BY LANDLORD IN ACCORDANCE WITH SECTION 20(1) OF THE HOUSING (SCOTLAND) ACT 2006

From: MR MOHAMED & MRS RUTH SFINA
9 FINDHORN PLACE
EDINBURGH
EH9 2JR
Insert name and address of landlord

To: ROSS CALEN WALSHE and DANIELA NOLL
4835 PRINCE EDWARD STREET
VANCOUVER, BC
CANADA V5V 3Z1
Insert name and address of tenant

Concerning your tenancy of the following house:

FLAT 1F1, 4 GLADSTONE TERRACE
EDINBURGH, EH9 1LX

Insert address of house

This is to inform you, as the tenant of the house described above, that Chapter 4 of Part 1 of the Housing (Scotland) Act 2006 applies in its entirety to your tenancy. This letter summarises the main effects of Chapter 4 on your tenancy.

I/we, as the landlord (or an authorised person), must carry out a pre-tenancy inspection of the house to identify work required to meet the Repairing Standard and must notify you of any such work.

I/we must ensure that the house meets the Repairing Standard at the start of, and at all times during, the tenancy. This duty applies only when you, as the tenant, inform me/us of work needed to meet the Repairing Standard (or I/we become aware of it in some other way). You should therefore notify me/us of any work required. I/we must complete that work within a reasonable time of becoming aware of it.

A house meets the Repairing Standard if the following conditions are met:

- **the house is wind and water tight and reasonably fit for human habitation** (taking account of the extent to which the house falls short of any building regulations, because of disrepair or sanitary defects);
- **the structure and exterior of the house** (including drains, gutters and external pipes) **are in reasonable repair and proper working order** (having regard to the house's age, character and prospective life and the locality). Where the house forms part of premises (eg, a flat), this requirement includes any part of the premises that the owner is responsible for maintaining, solely or communally, but the Repairing Standard only

applies if any part of, or anything in, the premises that the tenant is entitled to use is adversely affected;

- **the installations in the house for the supply of water, gas and electricity and for sanitation, space heating and heating water are in reasonable repair and proper working order** (including installations outside the house but serving it, and which the owner is responsible for maintaining, solely or communally);
- **any fixtures, fittings and appliances provided under the tenancy are in reasonable repair and proper working order**;
- **any furnishings provided under the tenancy are capable of being used safely for the purpose for which they are designed**; and
- **there is satisfactory provision of smoke alarms**.

The Repairing Standard does not cover work for which you, as the tenant, are responsible due to your duty to use the house in a proper manner; nor does it cover the repair or maintenance of anything that you are entitled to remove from the house.

If you believe that I/we have failed to ensure that the house meets the Repairing Standard at all times during the tenancy, you have the right to apply to the Private Rented Housing Panel (PRHP). The PRHP may reject the application; consider whether the case can be resolved by us (the tenant and landlord) ourselves (for example, by agreeing to mediation); or refer your application to a Private Rented Housing Committee (PRHC) for consideration. The PRHC has power to require a landlord to carry out work necessary to meet the Repairing Standard. Full details of how to apply to the PRHP may be obtained at www.prhpscotland.gov.uk or from

Private Rented Housing Panel
3rd Floor
140 West Campbell Street
Glasgow
G2 4TZ

Tel: 0141 572 1170
Fax: 0141 572 1171
admin@prhpscotland.gov.uk

Signed:..... Date: 17 August 2011
~~Insert landlord's signature~~
Insert Landlord's agents signature
Insert date

I certify that I have received a copy of this letter.

Signed:..... Date:.....
Insert tenant's signature *Insert date*